

UI/UX Design Principles (Developer Notes)

Do NOT Change the language or wording of the Privacy Policy Attached here.

1. Present this Privacy Policy as a dedicated StartWithGEMS legal-information page using the same design and Font/ formatting etc. as the rest of the site.
2. Keep the page highly readable, with clear section headings, comfortable spacing, and simple navigation.
3. Do not place the policy inside a modal or accordion that makes the full policy difficult to access or print.
4. The footer should provide a persistent Privacy Policy link.
5. Where the website uses cookies or tracking technologies that require consent, the consent mechanism should link clearly to the relevant privacy information and choices.

Privacy Policy

StartWithGEMS.com

No matter what journey you begin... Start With GEMS

1. Introduction

GEMS Network LLC (“GEMS,” “we,” “our,” or “us”) operates the StartWithGEMS.com website and related services, features, member experiences, and communications (collectively, the “Services”). We respect your privacy and are committed to handling personal information responsibly, transparently, and with appropriate safeguards.

This Privacy Policy explains what information we may collect, how we may use it, when we may disclose it, how we protect it, and the choices and rights that may be available to you. By using the Services, you acknowledge the practices described in this Privacy Policy.

2. Information We Collect

Depending on how you interact with GEMS, we may collect information you provide directly, information collected automatically, and information received from certain third parties.

Information You Provide

- Name and contact information, such as email address, telephone number, mailing address, or other contact details.
- Account and membership information, including login credentials, membership level, preferences, and information needed to administer your account.
- Educational, professional, career, business, relocation, or other journey-related information that you choose to provide when requesting guidance or services.
- Information submitted through forms, consultations, inquiries, support requests, communications, surveys, applications, or other interactions with GEMS.
- Information necessary to process transactions, subscriptions, or other requested services. Payment card information may be processed directly by third-party payment processors and may not be stored by GEMS in full.
- Information you voluntarily provide when requesting or receiving a connection to a member of the GEMS Trusted Network.

Information Collected Automatically

- IP address and general device or browser information.
- Operating system, browser type, language, approximate location derived from technical information, and device identifiers where applicable.

- Pages viewed, links selected, referring pages, dates and times of access, and other website usage information.
- Cookie, pixel, local-storage, analytics, and similar technology information, subject to your choices and applicable law.

Information From Other Sources

We may receive information from service providers, payment processors, authentication providers, analytics providers, business partners, or other sources when permitted by law and when reasonably necessary to provide, secure, improve, or administer the Services.

3. How We Use Information

We may use personal information for purposes including:

- Providing, administering, and improving GEMS services and member experiences.
- Responding to questions, inquiries, requests, and support needs.
- Providing education, career, professional, business, relocation, planning, or other guidance within the scope of GEMS services.
- Administering memberships, subscriptions, accounts, payments, renewals, and related communications.
- Facilitating appropriate connections with members of the GEMS Trusted Network when requested or when such a connection is part of the member service.
- Personalizing information, resources, and communications based on your interactions with GEMS.
- Sending service-related notices, administrative communications, security alerts, and other information necessary to operate the Services.
- Sending marketing or promotional communications where permitted by law and subject to applicable opt-out choices.
- Analyzing usage, troubleshooting, maintaining, and improving website performance and functionality.
- Detecting, preventing, investigating, and responding to fraud, abuse, security incidents, unauthorized activity, or other harmful or unlawful activity.
- Complying with applicable laws, regulations, legal processes, and lawful requests from governmental authorities.
- Establishing, exercising, or defending legal claims and protecting the rights, property, safety, and interests of GEMS, our users, and others.

4. How We Share Information

GEMS does not sell your personal information for money. We may disclose or make information available to third parties only as reasonably necessary for the purposes described in this Policy, to provide requested services, or as otherwise permitted or required by law.

- Service Providers and Vendors — technology, hosting, analytics, communications, payment processing, customer support, security, and other providers that perform services on our behalf.
- Trusted Network Providers — when you request a connection, when a connection is part of the service you have selected, or when disclosure is otherwise authorized and appropriate. We seek to limit the information shared to what is reasonably necessary for the connection.
- Professional or Service Partners — where necessary to fulfill a service or request, subject to the applicable relationship and privacy requirements.
- Legal, Regulatory, and Government Authorities — when required by law, court order, subpoena, governmental request, or other legal process, or when reasonably necessary to protect rights, safety, or security.
- Business Transactions — in connection with a merger, acquisition, financing, reorganization, sale of assets, bankruptcy, or similar transaction, subject to applicable legal requirements.
- With Your Direction or Consent — when you specifically authorize or request a disclosure.

Third parties that process personal information on our behalf may be subject to contractual, legal, or professional obligations concerning confidentiality and security. GEMS remains responsible for its own privacy practices but cannot control the independent privacy practices of third parties acting on their own behalf.

5. The GEMS Trusted Network

The GEMS Trusted Network is designed to connect eligible members with independent businesses, organizations, and professionals selected and maintained by GEMS as network partners. GEMS may provide guidance and consulting directly and may also facilitate connections to independent providers.

A Trusted Network provider is generally an independent business or professional and is not an employee, agent, or representative of GEMS unless expressly stated otherwise. When you engage an independent provider, that provider is responsible for its own services, professional advice, decisions, fees, agreements, and privacy practices. GEMS' role is to guide and facilitate the connection.

If you provide information directly to a Trusted Network provider, that provider may process the information under its own privacy policy and applicable legal obligations. You should review the provider's privacy practices before providing information directly to that provider.

6. Membership, Account, And Payment Information

If you create a GEMS account or purchase a membership, we may process information necessary to establish and administer your account, provide membership benefits, communicate with you, and manage billing and renewals.

Payments may be processed through third-party payment providers. GEMS does not intend to store complete payment card numbers when those details are handled by the payment provider. Payment processors may collect and process payment information under their own terms and privacy policies.

7. Cookies And Similar Technologies

GEMS and its service providers may use cookies and similar technologies to operate the website, remember preferences, understand usage, maintain security, measure performance, and support analytics or communications.

You may be able to control cookies through your browser or device settings. Disabling certain cookies may affect the availability or functionality of some features. Where applicable law requires consent for particular technologies, GEMS will seek consent through the applicable mechanism.

8. Analytics And Similar Services

We may use analytics or similar services to understand how visitors and members use the Services. These tools may collect technical and usage information in accordance with their own policies. Where applicable, users may have choices concerning certain analytics or tracking technologies.

9. Communications And Marketing Choices

We may send transactional, service, security, membership, and administrative communications that are necessary to operate the Services. You generally cannot opt out of communications that are essential to your account or requested services.

Where we send marketing or promotional communications, you may unsubscribe using the instructions included in the communication or by contacting us at info@StartWithGEMS.com. Opting out of marketing does not prevent us from sending necessary service-related communications.

10. Data Retention

We retain personal information for as long as reasonably necessary to provide the Services, maintain business and financial records, administer memberships, comply with legal or regulatory obligations, resolve disputes, enforce agreements, prevent fraud, and protect our rights. Retention periods vary depending on the nature and purpose of the information.

When personal information is no longer reasonably required, we may delete, de-identify, aggregate, or securely dispose of it, subject to legal, operational, backup, and legitimate business requirements.

11. Data Security

We maintain reasonable administrative, technical, and organizational safeguards designed to protect personal information against unauthorized access, disclosure, alteration, loss, misuse, or destruction. Security measures may include access controls, authentication, encryption where appropriate, monitoring, secure service providers, and other measures appropriate to the nature of the information and the risks involved.

No method of transmission over the Internet or method of electronic storage is completely secure. Accordingly, we cannot guarantee absolute security. You are responsible for maintaining the confidentiality of your account credentials and for promptly notifying GEMS if you believe your account or credentials have been compromised.

12. Data Breaches And Security Incidents

If GEMS determines that a security incident involving personal information requires notification under applicable law, we will provide notice as required by law and within the timeframes and through the methods required by the applicable jurisdiction.

13. Your Privacy Rights And Choices

Depending on where you live and subject to applicable law, you may have rights concerning your personal information, which may include the right to request access to, correction of, deletion of, or a copy of certain personal information, or to object to or restrict certain processing.

Certain state privacy laws may provide additional rights and may apply only when specified legal thresholds or conditions are met. GEMS will process verified requests in accordance with applicable law and may need to verify your identity before completing a request.

- Request access to personal information we maintain about you.
- Request correction of inaccurate personal information.
- Request deletion of personal information, subject to applicable exceptions.
- Request a copy or portability of certain information where required by law.
- Opt out of certain marketing communications.
- Exercise any additional rights provided by applicable privacy law.

14. How To Exercise Privacy Rights

To submit a privacy request or privacy-related question, contact GEMS at info@StartWithGEMS.com. Please identify the nature of your request and provide sufficient information for us to locate your records and verify your identity.

We will not discriminate against you for exercising privacy rights available to you under applicable law. We may decline or limit a request where permitted or required by law, and we will explain the basis for doing so when required.

15. Children's Privacy

The Services are not directed to children under 13, and GEMS does not knowingly collect personal information from children under 13 through the Services. If you believe a child under 13 has provided personal information to us, please contact us so that we can take appropriate steps.

If a particular GEMS service is intended for minors or becomes subject to additional children's privacy requirements, GEMS will implement the notices, consent mechanisms, and practices required by applicable law before collecting information from those users.

16. Sensitive Personal Information

Please do not submit sensitive personal information through general website forms unless GEMS specifically requests it through an appropriate secure process. Depending on the service and applicable law, sensitive information may include government identification numbers, financial account credentials, precise location data, health information, or other information requiring heightened protection.

If a GEMS service legitimately requires sensitive information, we will seek to collect only information reasonably necessary for the stated purpose and will use appropriate safeguards.

17. Third-Party Websites And Services

The Services may contain links to third-party websites, applications, payment providers, professional providers, or other services. Those third parties operate independently and may maintain their own privacy policies and terms. GEMS is not responsible for the privacy, security, content, or practices of independent third parties. We encourage you to review the applicable privacy policy before submitting personal information.

18. International Data Transfers

GEMS is based in the United States. Depending on where you are located and the service providers we use, personal information may be processed, stored, or accessed in the United States or other jurisdictions that may have privacy laws different from those in your place of residence. Where required by applicable law, GEMS will use appropriate mechanisms for such transfers.

19. Legal Basis For Processing Where Required

Where applicable law requires a stated legal basis for processing personal information, GEMS may rely on one or more applicable bases, including performance of a contract or requested service, compliance with legal obligations, legitimate business interests, consent, protection of rights and safety, or other lawful bases recognized by applicable law.

20. Do Not Track And Similar Signals

Some browsers and devices offer "Do Not Track" or similar signals. Because there is not a single universally accepted technical standard for responding to all such signals, GEMS may not respond to every such signal unless required by applicable law.

21. Changes To This Privacy Policy

GEMS may update this Privacy Policy from time to time to reflect changes in our Services, technology, business practices, legal requirements, or privacy practices. When we make changes, we will post the revised Policy on the website and update the effective date or other required notice. Your continued use of the Services after an updated Policy becomes effective constitutes acknowledgment of the revised Policy to the extent permitted by law.

22. Contact Us

If you have questions, concerns, privacy requests, or complaints regarding this Privacy Policy or GEMS' handling of personal information, please contact:

GEMS Network LLC

Email: info@StartWithGEMS.com

Website: StartWithGEMS.com

23. Effective Date

Effective Date: June 20, 2023